Form No: HCJD/C-121

ORDER SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

Writ Petition No. 1171 of 2026

Muhammad Kora
vs
Judge Family Court, Multan etc.

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary

29.01.2026. Mr. Munawar Iqbal Taheem, Advocate for the petitioner.
Mr. Musleh ud Din Khan, Assistant Advocate General Punjab, Malik Muhammad Bakhsh Khaki, Assistant Advocate General Punjab, Ahmad Hassan Khan Khichi and Dr. Muhammad Azeem Raja, Advocates.
Rana Ghulam Hussain, Assistant Attorney General for Pakistan.
Muhammad Kora, petitioner in person.
Alia Bibi, Respondent in person.

The petitioner, Muhammad Kora, has filed this constitution petition under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973 to challenge judgment and decree dated 17.12.2025 passed by learned Judge Family Court, Multan, whereby marriage of the petitioner and Alia Bibi/respondent No.2 ("***respondent***") has been dissolved on the basis of '*Khula*' due to failure of reconciliation proceedings. It is claimed that both the parties are aggrieved of the order of dissolution of marriage as the learned judge while declaring reconciliation proceedings as unsuccessful did not ask the parties, whether they wanted to keep the marriage intact or have the same dissolved.

2. Brief background of this matter is that respondent No.2 was married to the petitioner in the year 2012 and they were blessed with three children namely, Noor Bibi, Zahra Bibi (daughters) and Hassan Ali (son). By

claiming that due to quarrel between the parties resulting in the petitioner snatching two children from her and making life threats, she along with one daughter, who suffers from some disability, left the house of her husband and shifted first to her mother's house and then to Dar-ul-Aman, whereafter the respondent-plaintiff on 01.09.2025 filed a composite suit for recovery of Dowry Articles worth Rs.5,70,000/-, the details of which were provided in the list attached with the plaint and for dissolution of marriage. The petitioner filed a contesting written statement and denied allegation whereupon the matter was fixed for reconciliation proceedings for 19.11.2025 but on the said date the respondent was not produced from the Dar-ul-Aman and matter was adjourned to 03.12.2025, on which date lawyers were observing strike and matter was again adjourned to 17.12.2025. On the said date the Family court recorded cursory statements of parties and declared pre-trial reconciliation proceedings as failed, with the result that the marriage between the parties was dissolved on basis of '*Khula*'.

3. Learned counsel for the petitioner states that although reconciliation proceedings were declared as unsuccessful yet, respondent No.2 had not asked the learned Judge Family Court to pass decree for divorce, therefore, suit for dissolution of marriage could not have been decreed outright, rather learned court was to first make all efforts for reconciliation between the parties and exclude all possibilities of reconciliation before pronouncing decree for divorce, which process has not been adopted, besides it is also claimed that respondent is willing to join the petitioner as his wife and has no

objection if decree for dissolution of marriage is set-aside.

4. The respondent No.2 is also available in the Court and supports the version of the petitioner. She was directed to establish her identity, for which purpose she has produced her Computerized National Identity Card (CNIC) bearing No.32304-8779942-8. She was asked to get her identification verified through biometric system and she has produced her biometric verification receipt from the NADRA eSahulat Office, Lahore High Court issued today i.e. 29.01.2026. She has been confronted with her statement recorded on 17.12.2025 before the Judge Family Court wherein she had stated that she does not want to rehabilitate with the petitioner and reconciliation proceedings be declared as failed, in response to which she states that her suit was a composite suit seeking multiple reliefs including return of dowry articles and for dissolution of marriage wherein on 17.12.2025, she had been brought to the court from the Dar-ul-Aman to get her statement recorded and she had thought that the judge was asking her to go to the house of the respondent, who had previously turned her out and live with him, which she had declined as she wanted to have all the issues, including matter relating the dowry articles, maintenance and medical treatment of daughter etc., settled before she would join him and had never intended or conveyed or asked the Judge Family Court to decree her suit for divorce. It is also claimed that the learned Judge Family Court had not specifically asked her whether she wanted a decree for dissolution of marriage on the basis of *khula*, besides it has also been pointed out that the statement got recorded by respondent

was not properly interpreted. The statements of the parties got recorded on 17.12.2025 are reproduced below:

بیان ازاں عالیہ بی بی مدعیہ

برحلف بیان کیا کہ میں مدعاعلیہ کے ساتھ آباد نہ ہونا چاہتی ہوں۔ مصالحت کو ناکام کیا جائے۔

بیان ازاں محمد کوڑا مدعاعلیہ

برحلف بیان کیا کہ میں مدعیہ کو آباد کرنا چاہتا ہوں۔

5. It has been claimed that nothing further was asked by the trial court and impugned order was passed, whereby marriage has been dissolved, which conclusion both parties do not agree with. The said order dated 17.12.2025, impugned in this petition, is also reproduced below:

> *"Today, the case was fixed for pre-trial reconciliation proceedings between the parties. Statements of the parties have been recorded. Positive efforts were made to make the compromise between the parties but despite of due efforts made by the court, pre-trial reconciliation proceedings between the parties could not be succeeded, so the same is hereby declared as failed. In view of statement of the plaintiff, the suit of the plaintiff for dissolution of marriage is hereby decreed in favour of the plaintiff on the grounds mentioned in the plaint and marriage is hereby dissolved. The plaintiff as well as Ahlmad of this Court is hereby directed to send a copy of this judgment to the Chairman of concerned Union Council within "three days" U/S 9(7) Family Courts Amendment Act, 2015 for further proceedings through process server, registered post acknowledgment due, courier service, subject to deposit of process fee within two days. Decree sheet be prepared accordingly to that extent. No order as to costs.*
>
> *2. Out of divergent pleadings of the parties following issues are hereby framed.*
>
> *ISSUES:-*
>
> *1. Whether the plaintiff is entitled to recover her dowry articles valuing Rs.5,70,000/- as per list*

> *annexed with the plaint from the defendant as prayed for? OPP*
> *2. Whether the suit of the plaintiff is false, frivolous, vexatious and liable to be dismissed? OPD*
> *3. Relief?*
>
> *3. Now to come up for evidence of plaintiff to the extent of remaining claim for 19.01.2026."*

6. It has been claimed that as dissolution of the marriage of the parties was not intended or asked for, therefore no attempt was made by the parties to apply for or appear before the Chairman of the concerned Union Council, where the matter has been ordered to be sent by the Family Court in impugned order and have the certificate for dissolution of marriage issued. Moreover, it is also stated that the parties were shocked by the verdict, which has resulted in filing of this petition and both parties have appeared in the court against the said decision to have it declared as void *ab-initio* and of no legal effect.

7. The learned law officers have pointed out that the dissolution of marriage on the basis of *Khula* amounts to single divorce only and the parties can still have reconciliation *(Raju)* during the *iddat* period and live together as husband and wife, besides it has also been mentioned that even if certificate for dissolution of marriage had been issued, the parties could still remarry through Nikah without intervening marriage.

There is no doubt in the aforementioned principles of law referred to by the learned law officers that parties can have reconciliation during *iddat* period and there is no cavil to the proposition that dissolution of marriage through *Khula* would amount to single divorce only and parties can remarry through performance/solemnization

of *Nikah* without intervening marriage, for which purpose reliance may be placed on the principles laid down in the judgment in case titled ***Ibrahim Khan versus Mst. Saima Khan and others*** (PLD 2024 SC 645) wherein while discussing dissolution of marriage on ground of *Khula*, it has been held that as *Khula* is a special and exclusive right given to a woman, which is not available to a man, she can seek dissolution of marriage on the basis of *khula*, in which one of the consequences is that she can re-marry the same man, without entering into intervening or intermediary marriage i.e. *halala*. The same principle has been discussed in ***Major Qamar Zaman Qadir versus Judge Family Court, Jehlum and others*** (PLD 2013 Lahore 88) wherein it is laid down that:-

> *"7. 'Khula' is repudiation with consent at the instance of the wife in which she agrees to give a consideration to the husband for her release from marital bond and it has the effect of a 'talaq bayen'. It has already been settled by the court in a number of cases that pronouncement of 'khula' by the court would amount to a single divorce and petitioner would be at liberty to re-marry the respondent after solemnization of 'nikah' without intervention of third person. In this respect, reliance is placed on the cases reported as Mst. Naila Perveen and another v. The State and 2 others (PLD 2011 Lahore 37), Muhammad Ayyub Khan v. Mst. Shehla Rasheed and another (PLD 2010 Kar.131), Gulzar Hussain v. Mst. Mariyam Naz (2000 MLD 447 Karachi), Attiq Ahmed Khan v. Noorul Sabah and another (2011 CLC 1211) and Abdul Rehman v. Mst. Nagmali (2003 CLC 1332). A reference can also be made to the book of Hedaya or Guide by Charles Hamilton 1975, Edition at Page 112 of Chapter VIII, which reads as under:--*
>
> *"Which occasions a single irreversible divorce:---And where the compensation is thus offered and accepted, single divorce irreversible takes place, in virtue of Khula."*

At Page 107 it provides that:

> *"In a case of irreversible divorce short of three divorces, the husband is at liberty to marry his wife again, either during her Idit or after its completion, as the legality of the subject still continues, since the utter extinction of such legality depends upon a third divorce, and accordingly until a third divorce takes place, the legality of the subject continues."*
>
> *Section 7(6) of the Muslim Family Laws Ordinance, 1961 also does not debar the wife whose marriage has been terminated by divorce under Section 7 ibid from re-marrying the same husband without intervening marriage with a third person.*
>
> *8. In view of the above, I am of the considered opinion that 'khula' has the effect of one divorce (talaq Biyen) and the petitioner and respondent No.2 can rejoin as husband and wife after solemnization of fresh 'nikah' without intervening marriage i.e. 'Hilala'. Resultantly, the impugned judgment and decree is set aside and the writ petition is accepted."*

8. The above legal position would be applicable in case the respondent-wife had asked for divorce and on her asking, the court had dissolved the marriage. However, regardless of what the learned Law Officers have pointed out relating to the legal position arising out of dissolution of marriage on the basis of *Khula*, the question which arises in this case is that as the suit for dissolution of marriage has been decreed on failure of reconciliation proceedings, which procedure both the parties claim was not properly followed and no intention was expressed by the respondent wife or in the alternate jointly by both the parties while appearing before the Family Court for dissolution of their marriage, therefore said aspect of the matter has to be addressed first before reaching any final verdict in the matter. For ready reference Section 10 of the Family Courts Act, 1964

("**Act**"), which relates to pre-trial proceedings, is reproduced below:-

> *"**10. Pre-trial proceedings.**–*
> *(1) When the written statement is filed, the Court shall fix an early date for a pre-trial hearing of the case.*
> *(2) On the date so fixed, the Court shall examine the plaint, the written statement (if any) and the precis of evidence and documents filed by the parties and shall also, if it so deems fit, hear the parties and their Counsel.*
> *(3) The Family Court may, at the pre-trial stage, ascertain the precise points of controversy between the parties and attempt to effect compromise between the parties.*
> *(4) Subject to subsection (5), if compromise is not possible between the parties, the Family Court may, if necessary, frame precise points of controversy and record evidence of the parties.*
> *(5) In a suit for dissolution of marriage, if reconciliation fails, the Family Court shall immediately pass a decree for dissolution of marriage and, in case of dissolution of marriage through khula, may direct the wife to surrender up to fifty percent of her deferred dower or up to twenty-five percent of her admitted prompt dower to the husband.*
> *(6) Subject to subsection (5), in the decree for dissolution of marriage, the Family Court shall direct the husband to pay whole or part of the outstanding deferred dower to the wife."*

From the perusal of the above it is clear that in a suit before the Family Court, after the written statement is filed, the Court has to fix a date for a pre-trial hearing of the case. On which date, the Court has to examine the plaint, the written statement (if any) and the precis of evidence and documents filed by the parties and shall also, if it so deems fit, hear the parties and their counsel, ascertain the precise points of controversy between the parties and attempt to effect compromise between the parties and in case of dissolution of marriage on failure of conciliation proceedings, it may pass a final decree for

dissolution of marriage and in other cases if compromise is not possible then to frame issues and record evidence of parties.

9. In the case in hand, although the learned Family Court in the impugned order has mentioned that positive efforts were made to make the compromise between the parties and despite of due efforts made by the court, pre-trial reconciliation proceedings between the parties could not succeed, so the same are declared as failed, yet from the record it *prima facie* appears the learned trial court did not make positive attempt to find out or ascertain the points of controversy between the parties and attempt to effect compromise between them and has based its decision merely on the cursory statements of parties recorded before the court on the said date, without ascertaining true intention of the respondent-wife. The respondent, who due to alleged cruel attitude of the petitioner, had taken refuge in Dar-ul-Aman from where she had been brought to the Court on 17.12.2025 and her statement was recorded claims that she had been only asked by the court as to whether she wanted to reside/settle with her husband, without making an attempt to know whether she wanted dissolution of marriage or not. She claims that she had merely stated that reconciliation proceeding be declared as unsuccessful as she wanted all the issues relating the dowry articles, maintenance and treatment of her disabled daughter settled before she would settle with the petitioner, which aspect of the matter was not dealt with by the court. It was the duty and legal obligation of the Family Court to make a genuine attempt for reconciliation between the parties as the Family Court is instrumental in resolving the dispute between the parties

and if genuine efforts fail, only then decree for dissolution of marriage was required to be passed. Reference in this regard is made to the judgment of Supreme court in case titled ***Sohail Ahmed versus Mst. Samreena Rasheed Memon and another*** (2024 SCMR 634), wherein it is laid down as under:

> *"15. Section 10(3) imposes a legal obligation on the Family Courts to make a genuine attempt for reconciliation between the parties. Trial Court shall remain instrumental and make genuine efforts in resolving the dispute between the parties. In case if despite of genuine efforts, reconciliation fails, the Trial Court under proviso of section 10(4), without recording evidence is empowered to pass a decree of dissolution of marriage forthwith. At this juncture if the court observes that the wife without any reason is not willing to live with her husband, then under proviso (ibid) the Court is left with no option, but to dissolve the marriage."*

The discussion so made leads this Court to the conclusion that although the Family Court was not required to record evidence before dissolution of marriage on the basis of *Khula*, yet it could not be absolved of its obligation to find out whether wife actually wanted divorce or not, whereas in the present case genuine attempt to ascertain the precise points of controversy between the parties and attempt to effect compromise between them appears to be lacking. Thus to pronounce judgment outright does not appear to be proper and the matter should have been probed further before passing final verdict.

10. It has also been claimed that the respondent wife never stated in her statement that she wanted divorce on the basis of *khula* or any other ground and her statement is also silent to the said effect. Merely by stating that reconciliation proceedings be declared as unsuccessful, it could not be assumed that she wanted divorce on the basis of *Khula* especially when the respondent never

asked for divorce or stated that she could not live with the petitioner within the limits prescribed by the Almighty Allah. Furthermore, the learned Family Court has not pointed out any material on the basis of which it reached to the conclusion that the relations between the parties had become strained and there seemed no possibility of reunion, and if they were constrained to live together, they may transgress the limits prescribed by Almighty Allah and their union may not last longer, hence, their separation had become inevitable, which was a pre-requisite condition for dissolution of marriage on the basis of *Khula.* Reliance had been made to principles laid down by the Supreme Court in the judgment of case titled ***Muhammad Arif versus Saima Noreen and another*** (2015 SCMR 804). Reliance may also be placed on ***Abdul Fateh Babar Sani versus Ms. Naureen and another*** (2003 SCMR 1551), ***Muhammad Rafiq versus Mst. Kaneez Fatima and another*** (2000 SCMR 1563), ***Abdul Ghafoor versus Judge, Family Court and others*** (1999 SCMR 2631).

11. The next question that arises is that where reconciliation proceedings failed, in a family suit seeking relief of dissolution of marriage only or a composite family suit seeking different reliefs, containing *inter alia* a prayer for dissolution of marriage, whether on basis of *khula* or otherwise, the family Court was obliged to pass a decree for dissolution of marriage forthwith or the wife has to ask for the divorce while claiming reconciliation proceeding to be unsuccessful. It is settled by now that the court is empowered to decree the suit for dissolution of marriage on the basis of *Khula* without recording evidence or on any other ground after recording evidence despite the fact that the husband does not agree to the

same but such a decree could not be passed unless the wife asks for the same. The Supreme Court in case titled ***Dr. Faryal Maqsood and another Versus Khurram Shehzad Durrani and others*** (PLD 2025 Supreme Court 262), while discussing the issue of pronouncement of decree for dissolution of marriage on the basis of *khula*, without the wife asking for it has held as follows:

> *"10. Khula is one of the modes for dissolving a marriage. It can either be on the basis of mutual settlement/ arrangement between the spouses or it can be ordered by a court if the requisite conditions are met. This court in the case of Mst. Khurshid Bibi versus Babu Muhammad Amin (PLD 1967 SC 97) has held that Khula is a right and privilege of the wife to seek dissolution of marriage. It is a right which is exclusively conferred on the wife. Khula through judicial order is thus dissolution of marriage by the court/Qazi on the demand of the wife. It authorises the court to dissolve the marriage in an appropriate case against the will or consent of the husband. However, a court on its own cannot order dissolution of the marriage on the basis of Khula when it has not been sought by the wife either expressly or impliedly. It has further been observed that the question of Khula was a subject matter of a specific issue between the parties in the case before this Court. It has been noted in the judgment that the wife in her plaint had consented to the dissolution of marriage on the basis of Khula. The learned counsel for the defendant has placed reliance on Muhammad Arif's case (2015 SCMR 804) in support of his contention that a court is competent to order dissolution of marriage on the basis of Khula even though it may not have been sought by or consented to by the wife. We have carefully perused the judgment rendered by a Bench consisting of two hon'ble judges of this Court but, with respect, we have noted that the Bench had not considered the law enunciated by this Court in Khurshid Bibi's case (supra) which was rendered by a larger bench consisting of five hon'ble judges. The appellate court, therefore, fell in error by granting a decree for the dissolution of marriage on the basis of Khula when it was not*

> *sought by the plaintiff nor had she given express or implied consent thereto as was the case in Khurshid Bibi's case supra." (**emphasis supplied**)*

12. The Supreme Court in ***Dr. Seema Hanif Khan versus Waqas Khan and others*** (PLD 2026 Supreme Court 91) while hearing a case where suit for seeking dissolution of marriage on the ground of cruelty, was instead of the said ground decreed on the basis of *Khula*, observed that filing of a suit for dissolution does not in itself amount to seeking *khula*. The practice of converting a suit for dissolution of marriage into one of *khula* without the consent of the wife is totally in contravention to the law, as *khula* being an alternate mode of dissolution requires the wife's voluntary decision to end the marriage and pay compensation in exchange for release from the marital bond.

13. While deciding ***Ibrahim Khan v. Mst. Saima Khan and others*** (PLD 2024 SC 645) the Supreme Court observed that *Khula* is a basic right of a woman under Muslim Family Law. Right to seek *khula* is the exclusive and absolute right of the woman. She must in unambiguous and unequivocal terms express her intention to exercise such right before the court, that is to say, she must put her offer before the court that she seeks release from the marriage by waiving her dower and only then the court can grant her *khula*. Fundamentally, the principle is that *khula* cannot be granted, if it has not been explicitly sought for by the woman because she has to give up her right to dower. On the basis of aforementioned observation it was held that a court cannot on its own pass the decree of *khula* if it has not been sought for by the woman.

14. Here it would be important to discuss that Article 35 of the Constitution protects the institution of marriage, which is reproduced below:

> *'**Article 35. Protection of family, etc.** The State shall protect the marriage, the family, the mother and the child.'*

The perusal of the aforementioned Article of the Constitution has made it incumbent upon the state to protect the marriage, the family, the mother and the child, which clearly shows that all efforts are required to be made to protect the same and not to act in a manner that would be prejudicial to the aforementioned protected rights. Hence, the right of a woman to remain in a marital tie cannot be lightly taken away which is subject to adopting the proper procedure. Furthermore, the basic purpose of the Family Court Act, 1964 is to establish Family Court for the expeditious settlement and disposal of disputes relating to marriage and family affairs and matter connected with the same and the same should not in any manner be treated as creation of Court solely for the purposes of dissolution of existing marriages and that too by hastily dissolving the same. The preamble of the Family Courts Act, 1964 is reproduced below for reference:-

> ***"Preamble.*** *WHEREAS it is expedient to make provision for the establishment of Family Courts for the expeditious settlement and disposal of disputes relating to marriage and family affairs and for matters connected therewith;"*

The purpose of enactment of Family Courts Act, 1964, which is an Act to make provisions for the establishment of Family Court, is for the expeditious settlement and disposal of disputes relating to marriage and family affairs and matters connected therewith which

is in furtherance of the duty of the Court to protect the marriage, the family, the mother and the child as provided in the Article 35 of the Constitution of Pakistan and the provisions of the Family Courts Act, cannot in manner be applied to destroy the institution of marriage, unless the conditions for dissolution of marriage on the basis of *Khula* or any other ground provided by law for dissolution of marriage are established.

15. In view of the principles laid down in the aforementioned judgments and provisions of law, it is held that in a suit for dissolution of marriage, the court is required to make proper efforts to reconcile the matter in terms Section 10(3) of the Act and on failure of reconciliation proceedings is empowered to pass a decree for dissolution of marriage but said Section does not provide that in every case, where reconciliation proceedings are declared as not successful, the decree for dissolution of marriage on basis of *Khula* is definitely to be passed, rather the Court has to assess whether wife through her voluntary decision really requires marriage to be dissolved or not.

16. In view what has been discussed above and keeping in view the facts of the case in hand, assertions of the parties made before this Court and respondent's statement, in the present case got recorded on 17.12.2025 before the Family Court, it is noticed that the respondent had not said before the court that she wanted her marriage to be dissolved and had not expressed her voluntary decision requiring dissolution of her marriage and, therefore, there was no plausible ground or reason to pass a decree for dissolution of marriage on the basis of *Khula*. Moreover, statement of the petitioner-husband recorded on the same date clearly mentions that he wants

to reconcile the matter with the respondent. In view of the above, in the opinion of this Court, the family Court instead of hastily deciding the matter should have asked further questions to respondent as to whether she requires further time to think over or reconsider the matter and if in case she does not want to reconsider whether her marriage may or may not be dissolved by the Court, but the said course of action was not adopted. It is important to note here that the respondent wife, who had filed the family suit for settlement of her family disputes with the respondent due to the passing of the impugned order for dissolution of marriage, is standing scared before this Court of the outcome of proceedings of her suit and feels stranded and helpless due to the said decision and has asked this Court to reverse the same to enable her to settle all her disputes with her husband in an amicable manner, which aspect of the matter also requires to be given due consideration by this court.

17. In view of the foregoing, it appears that Judge Family Court has not properly exercised jurisdiction vested in him and has acted in haste to dissolve the marriage without ascertaining whether the wife wanted to be divorced or not, consequently, this petition stands ***allowed*** with the result that the order and decree dated 17.12.2025 for dissolution of marriage on the basis of ***Khula*** is declared as ***void ab-initio*** and is ***set aside*** with the result that suit for dissolution of marriage filed by the respondent shall be deemed to be pending before the Family Court, which shall proceed with the same in accordance with law. As a necessary corollary the matter referred to the concerned Union Council by the order of Family Court is also declared as without lawful authority and the proceedings before the Union Council on the

basis of the same are ***quashed*** and declared as ***non-existent***.

(*MUZAMIL AKHTAR SHABIR*)
JUDGE

*Naveed **

APPROVED FOR REPORTING: